

Shakir Ali v. State of U.P. and Others

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 21 September 2024 · 2024:AHC-LKO:65423-DB · WRIT - C No. 8166 of 2024 · **Writ disposed; liberty to invoke Supply Code para 6.5**

HEADNOTE

A recovery citation issued years after permanent disconnection raises a billing dispute for the licensee to resolve under paragraph 6.5 of the U.P. Electricity Supply Code, 2005. The writ was disposed of with liberty to approach opposite party no.2 under that paragraph.

FACTUAL SUMMARY

The petitioner's father, Sajjad Ali, ran a shop on a 0.5 kW commercial connection. The business was closed in 2019. The last bill of Rs.22,497 was paid on 13 February 2019, the meter was removed, and a permanent disconnection certificate issued. Further dues of Rs.9,400 were deposited on 30 April 2019. Over five years later, R.C. Praptra-36 dated 28 June 2024 sought recovery of Rs.1,54,809. A representation seeking recall of the certificate went unanswered, so the petitioner sought quashing of the citation and a bar on coercive recovery.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

post-disconnection recovery as a billing dispute

HOLDING

A recovery citation issued years after permanent disconnection and payment of the then-shown dues is a billing dispute which opposite party no.2 can resolve under paragraph 6.5 of the U.P. Electricity Supply Code, 2005. The writ is disposed of with liberty to the petitioner to approach that authority under para 6.5. ¶ 5-6

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ

The challenge to R.C. Praptra-36 was not decided on the bill. The Court treated the demand as a billing dispute for opposite party no.2 under paragraph 6.5 and disposed of the writ with liberty to invoke that paragraph. ¶ 5-6

6.5-representation-as-appropriate-remedy

A representation for recall of the recovery certificate had already been made. The Court still identified an approach to opposite party no.2 under paragraph 6.5 as the remedy and ended the writ on that liberty. ¶ 3, 5-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER RS.1,54,809 IS PAYABLE AFTER PERMANENT DISCONNECTION, AND WHETHER THE 2020 NOTICES OF ABOUT RS.1,54,749 SUSTAIN THE CITATION

Left to opposite party no.2 under paragraph 6.5; the Court recorded the notices and did not rule on the demand. ¶ 4-6